BYLAW 0
THE CONSTITUTION
UNIVERSITY OF TORONTO ENGINEERING SOCIETY

LAST REVISED: April 4, 2026

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If you have any questions regarding this document, please contact the Speaker at speaker@skule.ca.

CHAPTER 0 - GENERAL

0.0. Identity

0.0.1. The name of the Corporation shall be "The University of Toronto Engineering Society", in these Bylaws called "the Society".

0.0.2. The head office of the Society shall be in the City of Toronto, at such a place as the Board of Directors of the Society may fix from time to time.

0.0.3. The seal, an impression of which is stamped in the margin hereof, shall be the Seal of the Society.

0.0.4. The fiscal year of the Society shall conclude on 31 May each year.

0.1. Interpretation

0.1.1. In these Bylaws:

a. "Academic Year" shall refer to the Fall and subsequent Winter.

b. "Board of Directors" and "Board Meeting" shall mean the Board of Directors as defined in Bylaw 1, Chapter 4 and its Meetings as defined in Bylaw 1 section 4.7.

c. "Faculty" shall mean the Faculty of Applied Science and Engineering of the University of Toronto.

d. "Fall" shall refer to the months of September, October, November, and December.

e. "General Meeting" shall mean a meeting of the Members as defined by Bylaw 1, Chapter 2.

f. "Governing Council" shall mean the Governing Council of the University of Toronto.

g. "Members" shall mean members of the Society, as specified in Chapter 1

h. “ONCA” shall mean the Ontario *Not-For-Profit Corporations Act*, S.O. 2010, c. 15.

i. "Resolution" shall mean a motion approved by majority vote, unless a different vote threshold is specified;

j. "Summer" shall refer to the months of May, June, July, and August.

k. "Winter" shall refer to the months of January, February, March, and April.

0.1.2. All other words shall carry their common dictionary definitions, unless defined elsewhere in the Bylaws.

0.2. Purpose

0.2.1. The purpose of the Society is to serve as the official undergraduate student society of the Faculty.

0.2.2. The particular objectives of the Society shall be:

a. To promote, coordinate, and sponsor the cultural, technical, educational, athletic, and social activities of its Members.

b. To represent the interests of its Members in relation to all levels of governance within the University of Toronto pursuant to the provisions of section 0.2.3
c. To represent the interests of its Members in relation to other student organizations at the University of Toronto pursuant to the provisions of section 0.2.3
d. To encourage the development of professional attitudes and to cultivate a spirit of mutual assistance and cooperation among its Members in their preparation for the profession of engineering.
e. To provide services as required by its Members.
f. To ensure the safety and well-being of all its Members.
g. To use any collected student fees sustainably to further these objectives.

0.2.3. The Society and its representatives shall not:
a. Make statements on behalf of its Members without duly engaging them.
b. Represent or intervene on behalf of its Members in matters outside the scope of the governance of engineering student life which do not impact the Society's ability to serve its Members, such as the endorsement of political parties or candidates.
c. Represent the interests of individual Members over the collective.
d. Permit the discrimination or harassment of any of its Members in the course of its operations on the basis of race, gender, sexual orientation, age, disability, health condition, ancestry, place of origin, colour, ethnic origin, citizenship, creed, marital status, family status, receipt of public assistance, or record of offence.

0.3. Not for Profit

0.3.1. The Society shall be carried on without the purpose of gain for its Members and any profits or other accretions of the Society shall be used in promoting its objectives.

0.3.2. The directors of the Society shall serve without remuneration and no Member shall directly or indirectly receive any profit from their position as such; provided that a director may be paid reasonable expenses incurred by the performances of their duties.

0.3.3. Upon dissolution of the Society and after payment of all debts and liabilities, the remaining property of the Society shall be distributed or disposed of to the University of Toronto Engineering Alumni Association.

CHAPTER 1 - MEMBERSHIP AND FEES

1.0. Members

1.0.1. University of Toronto students enrolled (as defined by the Faculty) in a degree-seeking undergraduate program of study in the Faculty, who have paid or deferred either the Full Time or Part Time Membership Fees (as defined in Bylaw 1 section 1.1.1) for the semester, shall be Members of the Society.

a. Members shall only retain their membership for the semesters in which they have paid or deferred their Membership Fees.

b. Members retain their membership during the Summer following the Academic Year if they were enrolled and paid their membership fees during the Winter Semester.

1.0.2. Members who complete the requirements of their undergraduate degree (as defined by the Faculty) shall lose Membership of the Society and become Alumni (as defined in section 1.1) on the date of their Convocation.

1.1. Alumni

1.1.1. Alumni are individuals who have either:

a. Received an undergraduate degree, diploma, or certificate from the Faculty or its precursor, the Ontario School of Practical Science, or

b. Completed the requirements for the first year of study in any undergraduate program, but are not currently registered with the Faculty or its precursor, the Ontario School of Practical Science, towards a degree, diploma or certificate.

1.2. Fees

1.2.1. Members shall have paid in full, or successfully deferred, their Membership Fees for the Fall and/or Winter semesters in which they are considered a Member.

1.2.2. Once per year, the Board of Directors may increase the Membership Fee up to a cost of living adjustment approved by the Governing Council by amending Bylaw 1 section 1.1.1 accordingly.

1.2.3. The Membership Fee shall be non-refundable.

1.2.4. Increasing the Membership Fee beyond the cost of living adjustment, or creating or increasing any other fees, requires the approval of the Membership by referendum.

1.2.5. Decreasing or removing any fees requires:

a. A simple majority vote in a referendum of the Membership; or

b. A two-thirds majority vote at a General Meeting; or

c. A unanimous vote at a Board Meeting.

1.3. Rights of Membership

1.3.1. Alumni are not Members and shall enjoy no rights of Membership other than the right to speak at General Meetings and at meetings of the Board of Directors and its

committees.

1.3.2. All other rights and responsibilities of Members described in this document and other Bylaws and Policies of the Society shall pertain only to Members of the Society.

1.3.3. Individuals who are neither Members nor Alumni enjoy no rights within the Society, and do not have the right to attend or speak at General Meetings or meetings of the Board of Directors.

a. The right to attend or speak at said meetings may be granted by a resolution of the meeting's voting members.

CHAPTER 2 - AMENDMENTS TO BYLAWS

2.0. General

2.0.1. There shall be at least three levels of documents specifying the organization of the Society:
- a. Bylaw 0 (The Constitution);
- b. Bylaw 1 (The Engineering Society); and
- c. Other Bylaws.

2.1. Bylaw 0 (The Constitution)

2.1.1. Bylaw 0 shall specify the fundamental purpose of the Society, its Membership, and Bylaw amendment procedures.

2.1.2. An amendment to any of the following parts of Bylaw 0 requires a two-thirds majority vote at a Special General Meeting called for that purpose:
- a. Section 0.0, section 0.2, and section 0.3
- b. Section 1.0 and section 1.2

2.1.3. A motion under section 2.1.2 is out of order unless:
- a. It includes provisions directing that articles of amendment be filed to match the Bylaw 0 amendments, in accordance with ONCA sections 103 and 106; and
- b. Notice of the Special General Meeting in which it is considered includes the proposed amendments, in accordance with ONCA section 104(2).

2.1.4. The rest of Bylaw 0 may only be amended by a two-thirds majority vote at a General Meeting.

2.2. Bylaw 1 (The Engineering Society)

2.2.1. Bylaw 1 shall specify the fundamental organization of the Society.

2.2.2. Bylaw 1 may only be amended by:
- a. A two-thirds majority vote at a General Meeting; or
- b. A two-thirds majority vote at a Board of Directors Meeting.

2.3. Other Bylaws

2.3.1. Other Bylaws shall:
- a. Provide additional order to the organization specified in Bylaw 1; and/or
- b. Specify the organization of other areas of the Society.

2.3.2. Other Bylaws may only be passed, repealed, or amended by a simple majority of:
- a. A General Meeting; or
- b. A meeting of the Board of Directors.

2.4. Amendments

2.4.1. A bylaw amendment made by the Board of Directors is effective only until the next Annual General Meeting or a General Meeting called for the purpose of its ratification

unless confirmed thereat, and in default of confirmation thereat, ceases to have effect at and from that time, and in that case no new bylaw of the same or like substance has any effect until confirmed at a General Meeting. If such approval has not occurred by the next Annual General Meeting the amendment is struck down and neither it nor any substantially similar amendment may be proposed at a meeting of the Board for one year following the date of the Annual General Meeting.